Exhaustive Penal-Fiscal and Tax Assessment Report: Voluntary Disclosure and PIT-38 Corrections

Executive Summary and Objective

The ensuing research report presents an exhaustive adversarial and procedural analysis regarding the retroactive correction of Polish personal income tax returns (PIT-38) tailored to cryptocurrency transactions. The analysis specifically addresses the legal mechanisms of voluntary disclosure (*czynny żal*) and declaration correction (*korekta deklaracji*) under the Polish Penal Fiscal Code (Kodeks karny skarbowy, hereinafter "KKS") and the Tax Ordinance (Ordynacja podatkowa, hereinafter "OP"). This assessment is constructed around the factual matrix of a non-resident individual, specifically a Swedish citizen, who transitioned to Polish tax residency in April 2023 and subsequently failed to properly report virtual currency transactions, costs, and carry-forwards for the 2023 and 2024 fiscal years.

The primary objective of this report is to delineate the exact boundaries of penal-fiscal protection, scrutinize the interplay between systemic tax platforms (Twój e-PIT) and penal liability, evaluate the severe risks of third-party attribution (tax preparer liability), and provide an optimized, legally secure remediation strategy. The analysis operates under an adversarial posture, identifying maximum risk vectors and formulating defensive countermeasures.

1. The Substantive Tax Obligation: Cryptocurrency Mechanics under PIT-38

Before addressing the penal-fiscal remediation, it is imperative to establish the substantive tax obligations that the taxpayer violated. The Polish tax regime isolates virtual currency taxation from standard capital gains, creating unique compliance traps for newly established tax residents.

1.1 The Principle of Absolute Segregation

Under Article 30b, paragraph 1a of the Personal Income Tax Act, revenues from the chargeable disposal of virtual currencies are taxed at a flat rate of 19%.[1] However, the critical architectural feature of this regime is its absolute segregation. The Polish tax system treats revenues from cryptocurrencies as an entirely distinct source of capital gains. These cannot be combined or offset against revenues from the sale of traditional equities, bonds, or other financial instruments.[1] They occupy an exclusive, dedicated section within the PIT-38 statutory form.

1.2 Crypto-to-Crypto Neutrality

A vital procedural nuance is the principle of crypto-to-crypto neutrality. The exchange of one virtual currency directly for another virtual currency is entirely neutral from a tax perspective.[1] Such transactions do not generate taxable revenue, nor do they generate a recognizable cost of obtaining revenue at the moment of exchange. The reporting obligation is strictly triggered only when virtual currency is converted into fiat currency (e.g., PLN, EUR, USD), or when it is utilized to purchase goods, services, or property rights. Consequently, the taxpayer's systemic reporting burden is isolated to fiat off-ramping events.

1.3 The Mandate of Zero-Tax Cost Reporting

The central failure in the taxpayer's 2023 filing concerns the reporting of costs. Polish tax law mandates that the costs incurred for the acquisition of virtual currencies must be reported in the tax year they were incurred, regardless of whether any revenue was realized in that same year.[2] If a taxpayer only purchases cryptocurrency in a given year and sells none, the tax due is naturally 0 PLN. However, the failure to file a PIT-38 to report those acquisition costs results in the forfeiture of the right to mathematically carry those costs forward to offset future revenues.[2]

In the factual matrix provided, the taxpayer's 2023 return failed to report the current-year acquisition costs and any applicable prior-year/imported costs. This failure creates a cascading mathematical defect: the 2023 return generated an incorrect carry-forward balance, which subsequently corrupts the opening cost basis for the 2024 fiscal year, and continuously infects the 2025 calculation. The risk profile is thus characterized not by an immediate failure to pay tax in 2023 or 2024 (as the tax due remains 0 PLN), but by the systemic failure to maintain the continuity of the cost roll-forward, which constitutes the provision of false data to the tax authority.

2. Jurisdictional Mandates and Systemic Framework

The remediation of tax irregularities requires strict adherence to jurisdictional competencies and the utilization of mandated systemic portals.

2.1 Determination of the Competent Tax Authority

For a Swedish national who relocated to Poland and established tax residency as of April 12, 2023, identifying the legally competent tax office (*urząd skarbowy*) is the first procedural hurdle. Jurisdiction for personal income tax is determined based on the taxpayer's place of residence on the final day of the tax year (December 31).[3] The taxpayer must direct all active regret notifications and corrected declarations to the Head of the Tax Office (*Naczelnik Urzędu Skarbowego*) strictly corresponding to their registered Warsaw address at the end of 2023 and 2024.

In exceptionally rare cases where a taxpayer lacks a registered or determinable address in Poland, residual jurisdiction falls to the Third Tax Office Warsaw-Śródmieście (Trzeci Urząd Skarbowy Warszawa-Śródmieście).[4] However, assuming standard relocation, the local district office remains the competent authority. Submitting a voluntary disclosure to the incorrect authority can technically delay processing and, in highly adversarial scenarios, jeopardize the timeliness of the active regret if the authority secures independent knowledge before the documents are rerouted.

2.2 The e-Urząd Skarbowy Digital Ecosystem

The Ministry of Finance has centralized penal-fiscal remediation within the *e-Urząd Skarbowy* (e-Tax Office) ecosystem.[5] Submitting an active regret via physical mail or in-person delivery is obsolete and procedurally slower. The electronic active regret (*e-czynny żal*) can be submitted directly through the portal using the "General Letter" (*Pismo Ogólne*) functionality.[5]

Authentication requires a Qualified Electronic Signature, a Trusted Profile (*Profil Zaufany*), or an electronic ID (*e-dowód*).[5] It is paramount to note that while the electronic submission of the active regret triggers immediate systemic receipt, it must be accompanied or immediately preceded by the electronic submission of the underlying defective declarations (the PIT-38 corrections).

3. The Penal-Fiscal Architecture: Active Regret vs. Declaration Correction

To properly advise the taxpayer, it is necessary to deconstruct the two primary defensive mechanisms embedded within the Penal Fiscal Code (KKS): Article 16 (*czynny żal*) and Article 16a (*korekta deklaracji*). These are distinct statutory vehicles with different triggering conditions and operational scopes.

3.1 Article 16 KKS: The Traditional Active Regret

The institution of active regret (*czynny żal*) under Article 16 § 1 of the KKS is a procedural safe harbor designed to incentivize spontaneous compliance. It stipulates that a perpetrator of a penal-fiscal offense or contravention is not subject to punishment if, after committing the prohibited act, they notify the prosecution authority, revealing the essential circumstances of the act, including the persons cooperating in its commission.[7]

Scope of Protection:

An effective active regret constitutes a negative procedural premise. It does not merely mitigate the penalty; it completely eliminates penal-fiscal punishability. The authority is legally barred from issuing fines, mandating penalty tickets (*mandat karny*), or pursuing custodial sentences.

Limitations of Protection:

Active regret is strictly a penal-fiscal shield. It does not provide immunity against administrative tax liabilities. Specifically, it does not protect against:

1. **Substantive Tax Liability:** The obligation to remit the principal tax amount if a subsequent audit recalculates the crypto cost basis.
2. **Default Interest:** Statutory interest (*odsetki za zwłokę*) accrues automatically on any unpaid tax from the original due date until the day of payment.[8]

3. **Future Audits:** The submission of an active regret acts as a beacon. While it protects the specific act of late filing or incorrect reporting disclosed within the document, it does not prevent the tax authority from subsequently initiating a tax control (*kontrola podatkowa*) to verify the substantive mathematical merits of the reconstructed crypto history.

Conditions for Effectiveness: Under Article 16 § 2 KKS, the protection is absolutely conditional upon the full payment of the depleted public-law receivable (*uszczuplona należność publicznoprawna*) within a deadline set by the authority.[7] In the taxpayer's case, because the intended corrected tax due is 0 PLN, the financial restitution condition is theoretically fulfilled upon submission. Furthermore, the disclosure must be entirely voluntary and pre-emptive—a concept explored fully in Section 7.

3.2 Article 16a KKS: The Correction Immunity

Article 16a of the KKS represents a modernized safe harbor, introduced to decouple the act of correcting a tax return from the stigma and procedural weight of a formal active regret. Under Article 16a § 1 KKS, a perpetrator of a prohibited act strictly concerning the filing of a declaration is not subject to punishment if they submit a legally effective correction of the declaration (*prawnie skuteczna korekta deklaracji*) to the tax authority.[9]

Operational Mechanics: This mechanism operates synergistically with the Tax Ordinance (OP). Article 81 § 1 and 81b of the OP grant taxpayers the fundamental right to correct a previously submitted tax declaration.[10] When a taxpayer exercises this right and the correction effectively cures the defect, Article 16a KKS automatically triggers, providing statutory immunity for the original false declaration without the need to draft a narrative letter admitting guilt.

Delineation of Scope:

The critical limitation of Article 16a is that it only applies to offenses *concerning the filing of a declaration*. It cures the provision of false data within a submitted form. It does *not* apply to the complete failure to file a declaration (non-filing), nor does it cover ancillary offenses such as accounting fraud or hiding assets.

4. Analysis of the 2023 Fiscal Year: Material Defect and Correction

The 2023 fiscal year presents a straightforward procedural posture: a PIT-38 declaration was formally filed, but the data contained therein was materially false regarding cryptocurrency revenues and costs.

4.1 The Applicability of Article 16a KKS

Because a declaration exists in the system, the primary remediation vehicle is the submission of a corrected declaration (*korekta zeznania*) pursuant to Article 81 OP.[10] Upon the legally effective submission of this correction, the taxpayer triggers the automated protection of Article 16a KKS.[9]

4.2 The Paradox of Zero Tax and "Exposure to Depletion"

A central analytical question is whether penal-fiscal liability exists at all if the correction merely alters the cost carry-forward fields while the tax due for the year remains 0 PLN.

Under Article 54 KKS, tax evasion requires the taxpayer to "expose the tax to depletion" (*naraża podatek na uszczuplenie*).[12] Similarly, Article 56 KKS punishes the provision of untrue data in a declaration that exposes the tax to depletion.[13]

In penal-fiscal doctrine, "exposure to depletion" is not strictly limited to an immediate deficit in the current year's tax payment. The improper inflation or manipulation of carry-forward costs creates a latent, future exposure to depletion, because those artificial costs will systematically suppress the taxable base in subsequent fiscal years. Therefore, filing a false 2023 return that alters the carry-forward pool mathematically constitutes an offense under Article 56 KKS, even if the 2023 tax line reads zero. Consequently, the formal correction is legally necessary, and the protection of Article 16a KKS is actively required to neutralize the liability for the false reporting.

4.3 Strategic Wrap-Up

While Article 16a automatically protects the 2023 correction, standard adversarial practice dictates that this correction should still be explicitly referenced within a broader Article 16 active regret narrative. The rationale is holistic transparency. Because the 2023 carry-forward is the mathematical genesis of the 2024 reporting matrix, isolating the 2023 correction from a 2024 active regret creates a disjointed narrative that may provoke administrative suspicion. Integrating both years into one coherent, factual disclosure document demonstrates absolute good faith.

5. Analysis of the 2024 Fiscal Year: The Missing vs. Auto-Accepted Dichotomy

The 2024 tax year introduces profound systemic complexity due to the "Twój e-PIT" automated settlement infrastructure deployed by the Ministry of Finance. The legal remediation path bifurcates depending entirely on the automated backend status of the taxpayer's account.

5.1 Scenario A: The Auto-Accepted Return

Official Ministry of Finance guidance dictates that the Twój e-PIT service automatically prepares PIT-37 and PIT-38 declarations for taxpayers based on ingested data (e.g., PIT-8C forms from traditional brokers).[14] If the taxpayer takes no action to reject, modify, or independently file a return by the statutory deadline (typically April 30), the system executes an algorithm that automatically accepts the prepared declaration.

Crucially, this automated acceptance constitutes the legally binding submission of a tax return.[15] The legal fiction dictates that the taxpayer has officially filed the return. If this auto-accepted PIT-38 exists in the system for 2024, it is highly likely that it contains 0 PLN for cryptocurrency transactions, as the taxpayer did not manually input the data.

Legal Consequence: If the return was auto-accepted, the taxpayer is legally situated in a *correction* scenario. The appropriate action is to file a *korekta zeznania* under Article 81 OP. Consequently, the penal-fiscal protection mechanism reverts to Article 16a KKS, exactly mimicking the 2023 posture.[9]

5.2 Scenario B: The Completely Missing Return

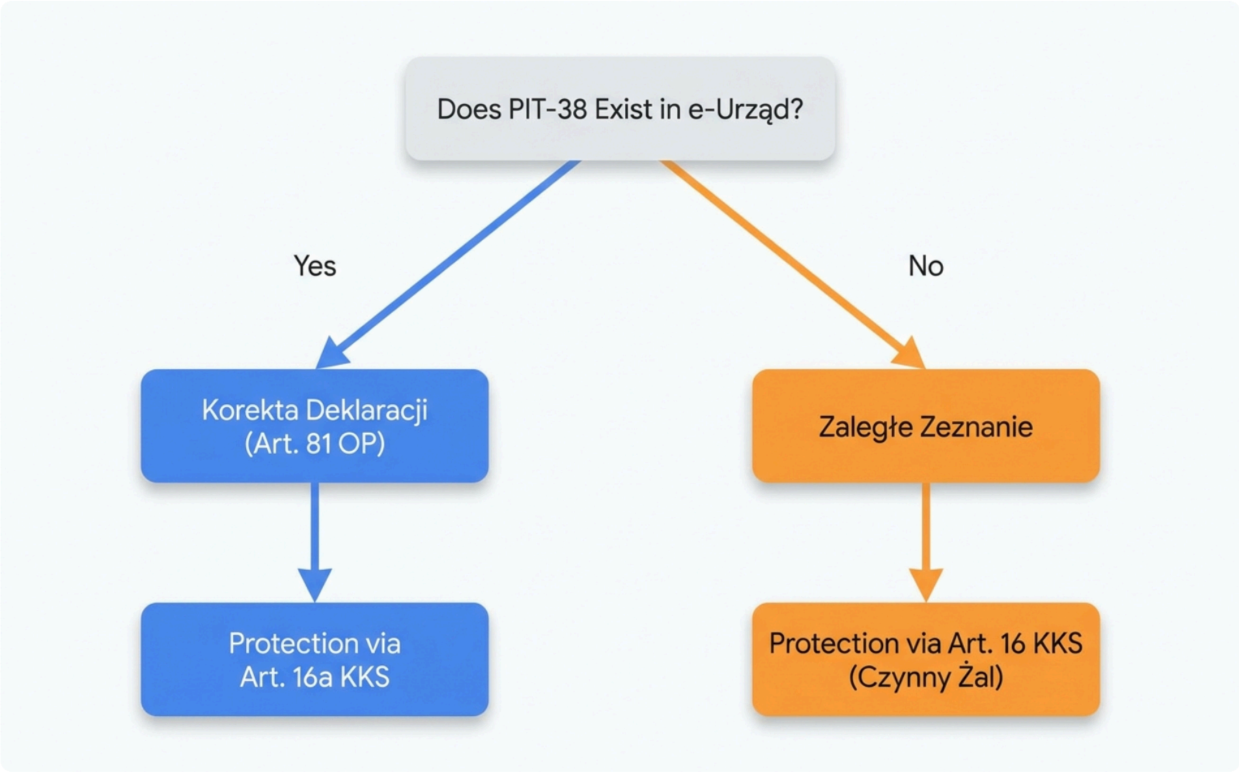
There are systemic edge cases where Twój e-PIT does not auto-generate or auto-accept a return—for example, if the taxpayer's foreign registry status or lack of Polish PESEL/NIP linkage caused systemic exclusion.

If no 2024 PIT-38 exists in the e-Urząd Skarbowy, the taxpayer is facing a "missing return" (*zaległe zeznanie*) scenario. In this posture, Article 16a KKS is entirely void, as one cannot correct a document that does not legally exist.

Legal Consequence: The failure to file a declaration triggers distinct penal-fiscal liabilities. Even if the ultimate tax liability is zero, the complete failure to file violates Article 56 § 4 of the KKS, which classifies the late filing of a tax declaration—even without the exposure of tax to depletion—as a penal-fiscal contravention (*wykroczenie skarbowe*) punishable by a fine.[13]

To remediate a missing return, the taxpayer *must* rely exclusively on Article 16 KKS (active regret). The overdue 2024 PIT-38 must be submitted as a first-time filing (*złożenie zeznania*), accompanied simultaneously by the active regret notification explaining the delay.

Penal-Fiscal Remediation Decision Matrix for PIT-38



The application of active regret versus declaration correction is strictly contingent on the presence of a formally recognized declaration within the e-Urząd Skarbowy system.

5.3 Consolidated Filing Strategy

Given the ambiguity regarding the 2024 backend status, the taxpayer must execute a dual-path strategy. The active regret document must be drafted to explicitly cover both the 2023 correction and the 2024 remediation, regardless of whether 2024 takes the form of a correction or a late first filing. Consolidating the narrative prevents the tax authority from fragmenting the case and ensures that the protective umbrella of Article 16 covers the entirety of the taxpayer's crypto reconciliation effort.

6. The Hazard of Third-Party Attribution: Tax Preparer Liability

A critical point of failure in poorly drafted voluntary disclosures is the inadvertent triggering of third-party liability investigations. The taxpayer's desire to attribute the reporting failure to a previously engaged Polish "tax company" is a severe strategic miscalculation.

6.1 The Trap of Article 9 § 3 KKS

Under Article 9 § 3 of the KKS, penal-fiscal liability is explicitly extended to any individual or entity who, based on a legal provision, an administrative decision, a contract, or actual performance, handles the economic affairs—particularly financial affairs—of another person or entity.[16] This statutory provision unequivocally encompasses external accounting bureaus, tax advisors, and financial preparers.

If a taxpayer submits an active regret stating, "I relied on professional tax assistance, told them I worked in crypto, and they failed to reconstruct the history," the taxpayer fundamentally alters the trajectory of the document. The tax authority is no longer solely looking at a compliant taxpayer; they are now legally obligated to investigate the professional negligence or potential penal-fiscal complicity of the tax firm.

6.2 The "Cooperating Persons" Mandate

Article 16 § 1 KKS requires the disclosing taxpayer to reveal "the essential circumstances of the act, in particular the persons cooperating in its commission".[7] If the taxpayer mentions the tax company, the authority will demand the identification of the specific accountants involved.

This triggers an adversarial administrative cascade. The tax authority will likely summon the accountants under Article 9 § 3 KKS. In defense of their own penal-fiscal liability, the tax company will almost certainly adopt an adversarial posture against the taxpayer. They may argue that the taxpayer willfully withheld information, provided incomplete transaction logs, or failed to communicate the full extent of their offshore crypto trading. This "he-said, she-said" dynamic destroys the swift, administrative resolution intended by an active regret, dragging the taxpayer into a protracted, multi-party evidentiary proceeding.

6.3 The Fallacy of the Article 10 Defense

Taxpayers frequently attempt to use reliance on professionals to claim a "justified mistake of law" (*usprawiedliwiony błąd co do prawa*) under Article 10 KKS.[17] Article 10 dictates that a person does not commit an offense if they operate under a justified lack of awareness of its punishability.

Invoking Article 10 in a voluntary disclosure is highly counterproductive. An active regret under Article 16 is an administrative mechanism designed to bypass the assessment of guilt by granting automatic immunity in exchange for compliance. Raising an Article 10 defense attempts to argue that no offense was committed at all. This requires the authority to evaluate the subjective mindset of the taxpayer, the exact nature of the correspondence with the tax firm, and the standard of care expected of a foreign resident. This converts an automatic administrative shield into a complex, subjective legal dispute.

The optimal strategy is absolute narrative internalization. The taxpayer must assume sole formal responsibility for the misunderstanding of the Polish mechanics, framing it as a systemic, personal misunderstanding of complex transitional rules, thereby neutralizing any third-party vectors.

7. Timing, Systemic Knowledge, and the DAC8 Catalyst

The legal efficacy of the active regret is highly time-sensitive, governed by the authority's evolving systemic knowledge.

7.1 The "Clearly Documented Knowledge" Threshold

Article 16 KKS is rendered void if submitted after the tax authority has already acquired "clearly documented knowledge" (*wyraźnie udokumentowana wiadomość*) of the specific offense, or has initiated actions aiming to reveal it.[7]

A critical distinction must be drawn: systemic silence does not equal documented knowledge. The mere fact that the 2024 PIT-38 is missing from the e-Urząd system, or that a mathematically strange 2023 return is sitting in the database, does not mean the authority has "clearly documented knowledge" of the *unreported cryptocurrency transactions*. Until an automated algorithm flags the discrepancy, or an auditor physically opens an inquiry cross-referencing the taxpayer's data, the window for active regret remains open. The authority must possess specific awareness of the undisclosed fact, not just a systemic anomaly.

7.2 The Pitfall of the PIT-8C

Taxpayers often panic, believing that because crypto exchanges operate like brokerages, the Polish government is already receiving PIT-8C forms documenting their trades, thus voiding the active regret. This is factually incorrect under current law. Unlike traditional equity brokers, cryptocurrency exchanges currently do not generate or transmit PIT-8C forms to the Polish tax administration.[18] The burden of data aggregation and reporting currently rests entirely on the taxpayer. Therefore, domestic PIT-8C cross-referencing is not an immediate threat to the active regret's validity.

7.3 The Ticking Clock: The DAC8 Directive

While current systemic knowledge is low, a catastrophic regulatory shift is imminent. The European Union's Directive on Administrative Cooperation (DAC8) introduces a draconian regime of mandatory, automatic exchange of information specifically targeting crypto-assets.[19]

The Polish implementation of DAC8 mandates that Crypto-Asset Service Providers (CASPs)—including major exchanges and brokers—must collect exhaustive data on user identities, transaction volumes, and fiat off-ramping, and report this data directly to the national tax authorities.[19] Crucially, DAC8 entered into force conceptually on January 1, 2026, marking the commencement of the data logging period.[20]

The first wave of automated data exchange between EU member states and the Polish Ministry of Finance is scheduled for 2027, covering the 2026 fiscal year.[19] However, the infrastructural rollout of DAC8 means that the Polish National Revenue Administration (KAS) is currently upgrading its algorithms to ingest massive datasets of crypto history. Once KAS receives automated transaction data and cross-references it against the taxpayer's 2023 and 2024 returns, the algorithmic mismatch will instantly satisfy the "clearly documented knowledge" threshold, permanently destroying the availability of the active regret mechanism. The taxpayer's execution of this remediation strategy is therefore critically time-bound to the pre-DAC8 enforcement window.

8. Exhaustive Critique of the Taxpayer's Draft Wording

The draft wording proposed by the taxpayer is conceptually logical but contains severe terminological and strategic flaws that expose the taxpayer to unnecessary legal scrutiny.

8.1 Deconstruction of the User's Draft

- **Original:** Działając na podstawie art. 16 § 1 Kodeksu karnego skarbowego, zawiadamiam o nieprawidłowym wykonaniu obowiązków w zakresie zeznań PIT-38 dotyczących walut wirtualnych.
  - *Critique:* Acceptable opening, but it fails to invoke Article 16a KKS. Given the dual nature of the 2023 (and potentially 2024) filings as corrections, referencing 16a out of procedural caution is necessary to align the narrative with the systemic reality.
- **Original:** ``
  - *Critique:* A legal submission cannot contain conditional bracketed variants. The taxpayer must verify the exact status in the e-Urząd portal prior to submission. If systemic verification fails, the text must be drafted continuously to cover either outcome without looking indecisive.
- **Original:** Nieprawidłowości wynikały z tego, że po przeprowadzce do Polski w 2023 r. nie rozumiałem jeszcze w pełni polskich zasad rozliczania walut wirtualnych w PIT-38...
  - *Critique:* This is an excellent, highly plausible internalization of the error. It frames the failure as a mechanical misunderstanding by a transitioning foreigner, which administrative bodies view favorably.
- **Original:** Korzystałem z profesjonalnej pomocy przy rozliczeniu podatkowym i poinformowałem, że pracuję w branży krypto, ale odrębna historia transakcji... nie zostały wtedy prawidłowo zidentyfikowane i odtworzone.
  - *Critique:* **FATAL ERROR.** As analyzed in Section 6, this triggers Article 9 § 3 KKS third-party liability. It implies the professional preparer was negligent or complicit, violating the mandate not to have undisclosed cooperating persons. This sentence must be eradicated.
- **Original:** W popełnieniu czynu nie współdziałały inne osoby. Korzystałem z pomocy zewnętrznego podmiotu przy przygotowaniu rozliczenia, ale nie mam wiedzy, aby jakakolwiek osoba działała z zamiarem naruszenia obowiązków podatkowych.
  - *Critique:* This is a massive logical contradiction. The taxpayer explicitly states no one else cooperated, and in the next breath admits an external entity prepared the return. This invites an immediate investigative summons. The entire reference to the external entity must be removed.

8.2 Optimized Polish Replacement Text

The following text has been legally engineered to neutralize third-party risk, consolidate the

2023/2024 narrative, and satisfy all stringent conditions of Article 16 and 16a KKS.

Działając na podstawie art. 16 § 1 Kodeksu karnego skarbowego, a z ostrożności procesowej również w zakresie art. 16a § 1 k.k.s., zawiadamiam o nieprawidłowym wykonaniu obowiązków podatkowych w zakresie ewidencjonowania i raportowania odpłatnego zbycia walut wirtualnych za lata podatkowe 2023 oraz 2024.

W złożonym uprzednio zeznaniu PIT-38 za rok 2023 nie wykazałem prawidłowo danych dotyczących kosztów nabycia walut wirtualnych oraz wartości kosztów przenoszonych na lata następne. Odnośnie roku 2024, składam stosowną korektę zeznania (w przypadku jego automatycznej akceptacji w systemie Twój e-PIT) lub składam zaległe zeznanie po terminie, uzupełniając brakujące wartości kosztów i przychodów.

Nieprawidłowości te były wyłącznie wynikiem mojego głębokiego niezrozumienia specyfiki polskich przepisów podatkowych w początkowym okresie po zmianie mojej rezydencji podatkowej i przeprowadzce do Polski w 2023 r. Będąc obcokrajowcem, nie miałem świadomości, że polski system prawny wymaga rygorystycznego, odrębnego ewidencjonowania i rolowania na kolejne lata kosztów walut wirtualnych w formularzu PIT-38, nawet w sytuacji, gdy podatek do zapłaty wynosi ostatecznie 0 zł.

Po uświadomieniu sobie błędu i samodzielnej, żmudnej rekonstrukcji historii transakcji, z własnej inicjatywy porządkuję moje rozliczenia. Równolegle z niniejszym zawiadomieniem przesyłam prawnie skuteczne zeznania/korekty PIT-38. Zgodnie z prawidłowymi wyliczeniami, podatek do zapłaty z tytułu walut wirtualnych za lata 2023 i 2024 wynosi 0 zł, w związku z czym nie doszło do faktycznego uszczuplenia należności publicznoprawnej podlegającej natychmiastowej wpłacie.

Oświadczam stanowczo, że w popełnieniu opisanego uchybienia nie współdziałały żadne inne osoby; błędy wynikały w 100% z moich własnych zaniedbań informacyjnych i błędnej interpretacji prawa. Zawiadomienie zostaje złożone zanim organ podatkowy powziął wyraźnie udokumentowaną wiadomość o opisanych brakach. Proszę o uznanie niniejszego zawiadomienia za w pełni skuteczne i odstąpienie od stosowania sankcji karnoskarbowych.

Acting on the basis of Article 16 § 1 of the Penal Fiscal Code, and out of procedural caution also within the scope of Article 16a § 1 KKS, I notify you of the incorrect fulfillment of tax obligations regarding the recording and reporting of the chargeable disposal of virtual currencies for the tax years 2023 and 2024.

In the previously filed PIT-38 return for the year 2023, I did not correctly report data concerning the costs of acquiring virtual currencies and the value of costs carried forward to subsequent years. Regarding the year 2024, I am submitting an appropriate correction of the return (in the event of its automatic acceptance in the Twój e-PIT system) or submitting an overdue return past the deadline, supplementing the missing values of costs and revenues.

These irregularities were solely the result of my profound misunderstanding of the specifics of Polish tax regulations in the initial period following the change of my tax residency and relocation to Poland in 2023. As a foreigner, I was unaware that the Polish legal system requires strict, separate recording and rolling forward of virtual currency costs in the PIT-38 form, even in a situation where the tax due ultimately amounts to 0 PLN.

Upon realizing the error and independently carrying out a tedious reconstruction of my transaction history, I am sorting out my settlements on my own initiative. In parallel with this notification, I am transmitting legally effective PIT-38 returns/corrections. According to the correct calculations, the tax due on account of virtual currencies for the years 2023 and 2024 is 0 PLN, and therefore there has been no actual depletion of a public-law receivable subject to immediate payment.

I firmly declare that no other persons cooperated in the commission of the described omission; the errors resulted 100% from my own informational oversights and incorrect interpretation of the law. This notification is submitted before the tax authority has obtained clearly documented knowledge of the described omissions. I request that this notification be recognized as fully effective and that the application of penal-fiscal sanctions be waived.

9. Procedural Execution and Actionable Recommendations

To successfully operationalize this defense, the taxpayer must adhere to a strict procedural sequence to ensure the technological footprints align with the penal-fiscal legal theory.

9.1 Practical Filing Sequence

1. **Reconnaissance (The System Check):** Log into the e-Urząd Skarbowy portal using a Trusted Profile (*Profil Zaufany*). Navigate to the "Złożone dokumenty" (Submitted Documents) section.[6] Perform a hard check for a 2024 PIT-38. This determines definitively if the 2024 filing is a correction or a late first filing.
2. **The Substantive Filings:** Using certified tax software or the interactive e-Deklaracje portal [6], transmit the XML structured data for the 2023 PIT-38 Correction, and the 2024 PIT-38 (either as a correction or a primary filing, based on Step 1).
3. **Procure the UPO:** Do not proceed until the system generates the Official Receipt Confirmation (Urzędowe Poświadczenie Odbioru - UPO) for both submissions.[21] The UPO is the definitive legal proof of submission timestamp.

4. **Submit the Active Regret:** Immediately following the generation of the UPOs, return to the e-Urząd Skarbowy. Select "Pismo ogólne" (General Letter) and route it to the competent local tax office.[23] Paste the optimized Polish text provided in Section 8.2. Attach PDF renderings of the corrected PIT-38 forms and, crucially, attach the UPO files to definitively prove the obligation has already been fulfilled prior to the authority reading the letter.
5. **The 2025 Filing:** The 2025 PIT-38 must be filed normally before the April 30, 2026 deadline. Do not reference the 2025 filing in the active regret, as no offense regarding 2025 has occurred.

9.2 Critical Red Flags Requiring Legal Counsel

The taxpayer must halt execution and immediately engage a licensed Polish Tax Advisor (*Doradca Podatkowy*) or Penal-Fiscal Attorney (*Adwokat/Radca Prawny*) if any of the following conditions materialize:

- **Pre-emptive Contact:** If the taxpayer receives any written summons (*wezwanie*) or notification of verification activities (*czynności sprawdzające*) from the tax office prior to submitting the active regret.
- **Scale of Operations:** If the trading volume, frequency of trades, or use of algorithmic trading bots is so high that the tax authority could reasonably reclassify the activity from private capital management to an unregistered business activity (*niezgłoszona działalność gospodarcza*). This would entirely invalidate the PIT-38 paradigm and generate massive, recalculable tax liabilities.
- **DeFi and Mixing Origins:** If the reconstruction of the cost basis relies heavily on untraceable decentralized finance (DeFi) protocols, liquidity pools, or cryptocurrency mixers (e.g., Tornado Cash), exposing the taxpayer to Anti-Money Laundering (AML) inquiries that extend beyond simple penal-fiscal remediation.

9.3 2023 and 2024 Legal Mechanisms Table

The following table synthesizes the varying systemic postures, the applicable OP and KKS statutory mechanisms, and the requisite taxpayer actions to achieve compliance and immunity.

Tax Year	Expected System Status	Statutory Tax Mechanism (OP)	Primary Penal-Fiscal Protection (KKS)	Required Taxpayer Action in e-Urząd
2023	Formally Filed (Defective due	Korekta Zeznania (Art. 81	Art. 16a KKS (Correction immunity	Submit formal correction of PIT-38 prior to

	to missing costs)	OP)	covering false data)	submitting active regret.
2024 (Variant A)	Auto-Accepted by Twój e-PIT (Legally Defective)	Korekta Zeznania (Art. 81 OP)	Art. 16a KKS (Correction immunity covering false data)	Verify status. Submit formal correction of the auto-accepted PIT-38.
2024 (Variant B)	Missing Entirely (Systemic exclusion)	Zaległe Zeznanie (Late Filing)	Art. 16 KKS (Active Regret strictly required for late filing)	Verify status. Submit first-time PIT-38 late, explicitly covered by the 16 letter.

9.4 Consulted Legal and Administrative Sources

Authority / Jurisdiction	Legal Rule / Guidance	Relevance to Case	Confidence	Source Identifier
KKS (Penal Fiscal Code)	Art. 16 § 1-2	Defines the conditions and absolute immunity granted by active regret, requiring disclosure before authority knowledge.	High	[7]
KKS (Penal Fiscal Code)	Art. 16a § 1	Grants immunity specifically for	High	[9]

		the submission of legally effective corrections under the OP.		
KKS (Penal Fiscal Code)	Art. 9 § 3	Establishes penal-fiscal liability for third-party tax preparers and accountants, dictating the avoidance of naming external firms.	High	[16]
KKS (Penal Fiscal Code)	Art. 54 & 56	Details penalties for non-disclosure, false declarations, and late filing without tax depletion (narażenie na uszczuplenie).	High	[12]
KKS (Penal Fiscal Code)	Art. 10	Details mistake of law defenses, which are procedurally dangerous in voluntary disclosures.	High	[17]
Ministry of Finance / KAS	Twój e-PIT Guidance	Confirms auto-acceptance logic for PIT-38 forms,	High	[14]

		establishing the baseline for 2024 corrections.		
Ministry of Finance / KAS	e-Czynny Żal Guidance	Instructs on electronic submission of active regret via the e-Urząd Skarbowy portal.	High	5
EU Directive / Polish Implementation	DAC8 & CARF	Mandates future automatic exchange of crypto transaction data, establishing the ticking clock for the disclosure window.	High	19
Ordynacja Podatkowa (OP)	Art. 81 & 81b	Provides the fundamental procedural right to correct a previously submitted tax declaration.	High	10
PIT Act / KAS Guidance	PIT-38 Crypto Rules	Mandates the separation of crypto gains, neutral crypto-to-crypto exchanges, and the	High	1

		necessity of filing zero-tax cost reports.		

Bottom-Line Recommendation

The taxpayer must proceed immediately with the combined submission of the mathematical PIT-38 corrections and the optimized, unified active regret notification via the e-Urząd Skarbowy portal. By internalizing the narrative to a misunderstanding of procedural law by a new resident, the taxpayer effectively neutralizes the third-party liability traps of Article 9 § 3 KKS. Executing this strategy immediately is paramount to outmaneuver the impending automated reporting frameworks of the DAC8 directive, which will permanently close the window for voluntary, penalty-free remediation.

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